

‘What is the role of international environmental law in addressing environmental challenges? What are its most considerable limitations? Discuss using a specific environmental challenge of your choice’

LAWPP09 – Essay One

Student Number: 3045050

University of Stirling

March 2022

Introduction	3
The role of International Law in addressing the environmental challenges	3
Global South and North Division	4
Blurred nature of concepts in international environmental law	4
Climate Change Mitigation Efforts in International Environmental Law	6
The Kyoto Protocol	6
Trade of emissions	7
The Paris Agreement on Climate Change	7
Conclusion.....	9
Bibliography	10

Introduction

The existence of international law (IL), let alone international environmental law (IEL), and its efficiency is a matter of discussion in literature¹. Those who argue that IL does not exist point out the fact that there is not an enforcement mechanism to make sure that international rules are applied by countries. Another supporting fact in favour of this argument is that countries are considered to be sovereign units in the Westphalian international system and cannot be forced to renounce their sovereign rights to another country or organisation. Therefore, international law can be realised to the extent of the countries' willingness to do so. This argument, being correct in principle, must not lead to a thinking that all aspects of international law have evolved at a similar pace or that all of them suffer from the same level of inapplicability. Even though an understanding of a linear development of historical processes seems far from being a reality, and history includes backs and forwards in terms of evolution of laws, institutions, cultures etc., it is plausible to argue that IEL, though insufficient, has developed throughout the last two centuries and become one of the dominating agendas of the international community. This article specifically focuses on how climate change mitigation efforts have evolved within IEL, and the legal challenges affected by economic and political factors that lie as obstacles before the proliferation of these efforts within IEL. Therefore, the article begins with a brief analysis of the vulnerabilities of IEL, following the analysis of the UNCCC based primarily on a comparison and documentation of the Kyoto Protocol and Paris Climate Agreement and the criticisms directed against their composition. In conclusion, the study argues that shortcomings of international environmental cooperation do not have anything to do with the discipline of environmental law itself, which is created, aligned, or most often violated by states themselves.

The role of International Law in addressing the environmental challenges

ILE is not immune to the deficiencies of IL and can be considered one of its least improved aspects. For an area to be considered developed within IL, according to the orthodox view, the main sources of international law, which are treaties, customary law, and general principles of law² can be expected to be well-grounded³. At this point the question regarding how to measure whether a rule is well-grounded comes at fore. As a response, it can be argued that whether an agreement has a non-binding or binding nature determines the reliability of that agreement. Therefore, how an agreement is worded is vital to understand the degree of its binding nature.

Regarding the effectiveness of customary international law and general principles of law, case law can be a guide. When it comes to international environmental law, while it is seen that agreements in

¹ Regarding discussions on the subject, see Anthony D'Amato, "Is International Law Really 'Law'?" (2010). Faculty Working Papers. Paper 103. <http://scholarlycommons.law.northwestern.edu/facultyworkingpapers/103>; Lowe, A. V. International Law. Oxford, England: Oxford University Press, 2007.

² Article 38, ICJ Statute, [Statute of the Court | International Court of Justice \(icj-cij.org\)](http://www.icj-cij.org)

³ Daniel Bodansky, The Art and Craft of International Environmental Law, Harvard University Press, 2009

general lack a binding nature, there is a growing body of customary law and principles in case law which cannot be underestimated. Moreover, transnational movements and actors such as non-governmental organisations have gradually gained influence on the development and enforcement of IEL through pressures on institutions for accountability⁴. Yet there are some obstacles as to enforceability of IEL which are political and economic in nature.

Global South and North Division

The international system is a combination of two factors which are the Westphalian nation-state system and, as an economic model, the global capitalist system. These factors provide the basis for the legal context of environmental issues and constitute the main challenges before tackling them. They do so for two reasons: 1) the nation-state system is based on the premise of sovereign units which cannot be forced to transfer their sovereign rights to another political entity, 2) global capitalist system is centered on the ambition of continues growth where natural resources -either biotic or abiotic- in states' lands are considered to be national wealth, a premise that grants the sovereign states the right to exploit them freely unless otherwise is agreed on by law⁵.

Blurred nature of concepts in international environmental law

Some concepts in IEL such as environment and sustainable development or climate change do not have clear definitions. Regarding the concept of climate change, the developing scientific understanding of its nature has preceded its transposition into a legal plane throughout decades. On the other hand, codification of environmental issues does not simply correlate with the level of scientific awareness gained towards them. This said, while handling transboundary environmental issues, states do often have conflictual stands on a range of points from definitions of concepts to the determination of measures and responsibilities to mitigate them. Therefore, it can be argued that this ambiguity or disagreement on definitions is not solely due to an academic disagreement amongst states, but conversely, is political in nature as how those concepts are defined determines the way of sharing the burden amongst different stakeholders such as states, business sectors and international organisations. Therefore, gaining insight into the legal nature of the concepts regarding environmental issues is, while vital, hard to achieve. Regarding the term "environment," Dupuy et al. offer three ways to understand whether it was attached legal effects: looking at 1) the founding instruments of IEL, 2) decisions of international courts and tribunals, 3) definition of the term within a specific normative context such as a

⁴ Michael Mason, "Transnational Environmental Obligations: Locating New Spaces of Accountability in a Post-Westphalian Global Order" (2001) 26 Transactions of the Institute of British Geographers 407

⁵ "States have, in accordance with the Charter of the United Nations and the principles of international law, the sovereign right to exploit their own resources pursuant to their own environmental policies, and the responsibility to ensure that activities within their jurisdiction or control do not cause damage to the environment of other States or of areas beyond the limits of national jurisdiction."; Principle 21 of the Declaration of the United Nations Conference on the Human Environment, Stockholm, June 1972.

treaty or norm⁶. Yet, they maintain that each of these ways suffer from some limitations and cannot be easily transposed to other treaty contexts⁷. Regarding the overlapping of political terms and legal concepts, and consequent disappearance of the line between them is put forward with the following words by Bodansky:

*[T]he blurring of the line between law and politics is reflected even in the terminology of international environmental law, which often speaks of “commitments” rather than “obligations,” “non-compliance” rather than “breach,” and “consequences” rather than “remedies” or “sanctions.”*⁸

⁶ Pierre-Marie Dupuy and Jorge E Viñuales, *International Environmental Law*, (Cambridge University Press 2018), 29

⁷ For this reason, they argue for adopting operational definitions of the term environment under four sub-continents: 1) the marine environment and freshwater, 2) the protection of the atmosphere, 3) species, ecosystems, and biodiversity, 4) the regulation of dangerous substances and activities. (Ibid, 31)

⁸ Bodansky, 14

Climate Change Mitigation Efforts in International Environmental Law

Climate change is a concept that includes global warming, and extreme weather events such as heat waves, heavy rains and so on⁹. This phenomenon is primarily a result of the greenhouse gas (GHG) emissions, or anthropogenic emissions, into the troposphere from the industrial revolution onward.

There are two pillars of Climate Change regime: scientific pillar (IPCC) and policy pillar¹⁰. The reports of the scientific body have triggered political initiatives to tackle climate change since the 1990s onwards¹¹. Two major difficulties in these political initiatives were defining the scope of UNFCCC and how to deal with the differences between developed and developing countries¹². Regarding the first problem, the oil importing countries were pressing for a framework convention which does not entail countries to be bound with specific obligations, while the opposite camp was standing against a simply framed convention¹³. The second problem has been about how to share the burden of tackling climate change amongst countries¹⁴. Article 3 of the UNFCCC mentions the principles of the regime which are precautionary principle, principle of inter-generational equity, and the principle of common but differentiated responsibilities, while Article 4 distributes the responsibilities among parties in accordance with their level of development¹⁵.

The Kyoto Protocol

The Kyoto Protocol is considered to be a top-down approach to tackling climate change¹⁶. Dupuy et al. (2018) also argue that the following adoption of Berlin Mandate which focuses on committing obligations to the countries listed in Annex 1, protocols to UNFCCC has further deepened the gap of responsibilities amongst the parties making them obsolete in the end¹⁷. In case of the Kyoto Protocol, which required ratification of countries whose GHG emissions corresponded to 55% of total emissions of Annex 1 countries based on the year 1990, was born dead as the US disavowed the Protocol and Russia ratified it too late¹⁸. And emerging countries whose emissions were expected to increase were not subject to obligations under the Protocol¹⁹.

⁹ Dupuy et al, 172

¹⁰ Ibid, 173

¹¹ Ibid, 173

¹² Ibid, 176

¹³ Ibid, 176

¹⁴ Ibid, 176

¹⁵ *United Nations Framework Convention on Climate Change*. (n.d.). Retrieved March 1, 2022, from <https://unfccc.int/resource/docs/convkp/conveng.pdf>

¹⁶ Dupuy et al., 180

¹⁷ Ibid, 181

¹⁸ Ibid, 180

¹⁹ Ibid, 180

Trade of emissions

Art. 17 of Kyoto Protocol grants the right to trade the emission allowance amongst countries. This mechanism, called Clean Development Mechanism (CDM), enables countries who wish to emit more than their allowance envisaged in the Protocol to buy emission allowance of other countries who emit less than their share²⁰. Yet, this carbon market has been criticised as an invention of a new way to make profit, in other words accumulation of capital, within capitalist economic system without addressing the core issues that cause environmental degradation²¹. Moreover, the clean development projects in developing countries conducted under this mechanism to buy carbon credits have been criticised by creating a sub-imperialist inequality as most of these projects have been conducted in leading developing countries that are Brazil, China, and India while the whole continent Africa hosts only 1.86% of those projects²². Another challenge before the successful implementation of this mechanism is the tendency of private companies for commodifying certified emission reduction (CER) credits. This is done by companies who do not need CER credits but invest in clean development projects to acquire them and sell to other companies²³. Böhm et al. (2018) argue that carbon market is a way of artificial commodification of a currently non-commodified entities, and therefore a way of expanding the frontiers of capitalist accumulation²⁴. Therefore, the extent of this mechanism contributes to tackling climate change is a matter of discussion because of the economic understanding it is based on.

The Paris Agreement on Climate Change

The Paris Agreement signed in 2015 was aimed to reverse this top-down approach to a bottom-up one, motivating the parties to adopt nationally determined contributions²⁵ rather than obliging them to reach an agreed level of GHG reduction which in the example of the Kyoto Protocol proved unsuccessful. Rajamani (2016) argues that the Paris Agreement was worded in such a way that it was delicately calibrated, mixing provisions at two extremes with hard-obligations and non-obligations²⁶.

²⁰ Kyoto Protocol to the United Nations Framework Convention on Climate Change, Dec 11, 1997, 2303 UNTS 162

²¹ Newell, P., & Paterson, M. (2012). *Climate capitalism: Global warming and the transformation of the global economy*. Cambridge University Press, 129

²² Ibid, 129-130

²³ Ibid, 131

²⁴ Böhm S, Misoczky MC and Moog S, "Greening Capitalism? A Marxist Critique of Carbon Markets" (2012) 33 Organization Studies 1617

²⁵ Marie-Claire Cordonier Segger, "Advancing the Paris Agreement on Climate Change for Sustainable Development" (2016) 5 Cambridge International Law Journal 202

²⁶ Lavanya Rajamani, "The 2015 Paris Agreement: Interplay between Hard, Soft and Non-Obligations: Table 1" (2016) 28 Journal of Environmental Law 337

The political will of countries to undergo international obligations for tackling climate change is a variable that determines the destiny of the international agreements on the subject. That was the reason of adoption the bottom-up approach at Paris Agreement which enabled the countries to contribute to climate change mitigation efforts through a nationally determined target, a flexibility which was thought to encourage the parties to come together and cooperate. This agreed solution was also a try to include the US to the Paris Agreement, whose Republican senators had opposed to undergo environmental commitment in international forum, and China who is the main emitter in the developing world²⁷.

The Paris Agreement has three elements that are goals, action areas and implementation techniques. The preambular paragraph 12 refers to human rights in a climate change agreement for the first time²⁸. The Agreement represents a try to strike balance amongst parties who are hit by climate change directly, such as low-lying island states, and the others who are deemed not to be affected this severely²⁹. Indeed, Ourbak & Magnan (2017) attribute Small Island Developing States (SIDS) the success of showing leadership in amplifying the ambitious goal of keeping global warming below 1.5 °C³⁰, although such a goal was not recognised in the Paris Agreement. Article 2(2) of the Agreement refers to the principle of *common but differentiated responsibilities* while omitting the other two UNFCCC principles which are *precaution* and *intergenerational equity*³¹. Yet, Dupuy et al. (2018) interpret this as that climate change is no longer accepted as a matter of precaution, but rather an acknowledged risk that is to be prevented³². However, this does not provide an answer for the omission of the principle of intergenerational equity in the agreement even though it was stated in the preamble, which is accepted not to have a binding nature, while the term sustainable development (which includes intergenerational equity in its definition of Brundtland Report³³) was referred to in the body of the agreement. This said, it is not surprising that intragenerational equity principle, which requires equity within a generation, was also not mentioned in the agreement. As an action area, mitigation is considered to be the *soft belly* of the agreement³⁴ as it relies on the nationally determined contributions (NDCs) of countries³⁵. Since the agreement adopted a bottom-up approach, the means to enforce the NDCs of countries are made up of soft-natured tools such as "*transparency and reporting, peer review, periodic stocktaking, public*

²⁷ Dupuy et al., 185

²⁸ Dupuy et al., 188

²⁹ Dupuy et al., 188

³⁰ Timothée Ourbak, Alexandre K Magnan, "The Paris Agreement and Climate Change Negotiations: Small Islands, Big Players" (2017) 18 Regional Environmental Change 2201

³¹ Paris Agreement (Dec 13, 2015), in UNFCCC, COP Report No 21, Addendum, at 21, UN Doc FCCC/CP/2015/10/Add, 1 (Jan 29, 2016)

³² Dupuy et al., 189

³³ WORLD COMMISSION ON ENVIRONMENT AND DEVELOPMENT (1987), *Our Common Future*, Oxford, Oxford University Press.

³⁴ Dupuy et al., 189

³⁵ Article 3-4 of Paris Agreement (Dec 13, 2015), in UNFCCC, COP Report No 21, Addendum, at 21, UN Doc FCCC/CP/2015/10/Add, 1 (Jan 29, 2016)

participation and compliance mechanisms”³⁶. Therefore, it can be argued that both actions for mitigation and the tools for their enforcement lack a solid foundation in the agreement.

Conclusion

International environmental law is a growing body of sub-discipline under international law. Therefore, it suffers from the limitations of international law more than some other sub-disciplines of international law do. This is because of the conflictual nature of environmental issues on which the parties adopt different stand points in accordance with their economic, social, and political interests. However, this is not to claim that environmental law does not have a substantial effect on endorsing the initiatives for tackling environmental challenges. From the 1970s onwards, there has been a growing public interest in and pressure for accountability by NGOs about environmental issues which brought parties together to draw on the ways of tackling those issues. When it comes to climate change, it has been an area about which scientific certainty took time to gradually emerge and push for international cooperation. Even when scientific certainty became evident, the political and economic interests of states presented an obstacle before the adoption of mitigation measures on the international fora. The US’s disavowal of the Kyoto Protocol and Russian’s late accession resulted in failure of reaching the initially intended goals of reducing GHG emissions. The Protocol was interpreted as a top-down regulation creating binding obligations for the parties which were deemed to be the reason for the failure as they discouraged some countries to ratify the Protocol. The invention of the carbon market, while one of the seemingly working aspects of the Protocol, has been criticised for creating a new form of capitalist accumulation through commodification of certified emission reduction (CER) credits, therefore melting in the profit-induced logic of capitalist economy. The Paris Agreement, drawing on the failure of top-down enforcement of the Protocol, adopted a bottom-up approach with an ambition to motivate countries to cooperate for tackling climate change based on their nationally determined contributions. This time tools such as peer pressure and transparency were utilised as the means of enforcement which have not proved efficient in terms of achieving the goals set by the Agreement in so far. However, international environmental law cannot be held responsible for the failure of achieving the goals of international environmental agreements. Conversely, it is states who can and should define the scope of international environmental cooperation through codification of environmental responsibility and obligations and abiding by them. Pouncing on international environmental law, instead of states, for the failure of envisaged goals is similar to blaming a food for being tasteless rather than the incompetence of its cook.

³⁶ Marie-Claire, 207

Bibliography

Primary sources

- Kyoto Protocol to the United Nations Framework Convention on Climate Change, Dec 11, 1997, 2303 UNTS 162
- Paris Agreement (Dec 13, 2015), in UNFCCC, COP Report No 21, Addendum, at 21, UN Doc FCCC/CP/2015/10/Add, 1 (Jan 29, 2016)
- “United Nations Framework Convention on Climate Change”
<<https://unfccc.int/resource/docs/convkp/conveng.pdf>> accessed March 6, 2022
- World Commission on Environment and Development (1987), Our Common Future, Oxford, Oxford University Press.

Secondary sources

- Bodansky, Daniel. The Art and Craft of International Environmental Law, Harvard University Press, 2009
- Böhm S, Misoczky MC and Moog S, “Greening Capitalism? A Marxist Critique of Carbon Markets” (2012) 33 Organization Studies 1617
- Cordonier Segger M-C, “Advancing the Paris Agreement on Climate Change for Sustainable Development” (2016) 5 Cambridge International Law Journal 202
- D'Amato, Anthony, "Is International Law Really 'Law'?" (2010). Faculty Working Papers. Paper 103. <http://scholarlycommons.law.northwestern.edu/facultyworkingpapers/103>
- Lowe, A. V. International Law. Oxford, England: Oxford University Press, 2007.
- Mason M, “Transnational Environmental Obligations: Locating New Spaces of Accountability in a Post-Westphalian Global Order” (2001) 26 Transactions of the Institute of British Geographers 407
- Newell P and Paterson M, Climate Capitalism: Global Warming and the Transformation of the Global Economy (Cambridge University Press 2012)
- Ourbak T and Magnan AK, “The Paris Agreement and Climate Change Negotiations: Small Islands, Big Players” (2017) 18 Regional Environmental Change 2201
- Pierre-Marie Dupuy and Jorge E Viñuales, International Environmental Law, (Cambridge University Press 2018)
- Rajamani L, “The 2015 Paris Agreement: Interplay between Hard, Soft and Non-Obligations: Table 1” (2016) 28 Journal of Environmental Law 337